

STATE OF NEW YORK

3244--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. WOERNER, ANGELINO, MAGNARELLI, DeSTEFANO, LUPARDO, SIMON, PAULIN, LUNSFORD, SEAWRIGHT, GLICK, JONES, BICHOTTE HERME-LYN, RAGA, ROMERO, STECK, BAILEY, BUTTENSCHON -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requirements for licensure as a dentist

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 6605 of the education law, as
2 amended by chapter 57 of the laws of 1999, is amended and two new subdivi-
3 sions 2-a and 6 are added to read as follows:

4 2-a. (a) On recommendation of the board, the department may issue a
5 limited permit for instructing in dentistry to a dentist not licensed
6 under this article to participate as a general practice dental preceptee
7 in a preceptorship program under the supervision of a licensed dentist
8 practicing in a federally qualified health care facility or similar
9 facility that primarily serves an underserved population, and in doing
10 so to practice dentistry as defined in this article, but only on the
11 premises of such federally qualified health care facility or such simi-
12 lar facility as may be used to conduct the preceptorship program,
13 provided such preceptee: (i) is licensed to practice dentistry in a
14 jurisdiction other than New York and other than in another jurisdiction
15 of the United States or in a Canadian province; (ii) has completed a
16 preliminary competency examination in accordance with the commissioner's
17 regulations; (iii) has a minimum of five years full-time dental practice
18 experience or the equivalent thereof within the seven years immediately
19 preceding the request for a limited permit; and (iv) practices for the
20 duration of the preceptorship program exclusively in a federally quali-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 fied health care facility or similar facility that primarily serves an
2 underserved population.

3 (b) A licensed preceptor dentist who supervises a preceptee pursuant
4 to this subdivision shall have practiced for at least three years imme-
5 diately preceding the assumption of a preceptorship and shall have under
6 their supervision not more than one full-time preceptee nor more than
7 two part-time preceptees.

8 4. A limited permit under this section shall be valid for one year or
9 until ten days after notification of denial of an application for
10 license. A limited permit may be renewed for one year, except if the
11 applicant is serving in a residency program in a hospital or school of
12 dentistry or preceptorship program in a federally qualified health care
13 facility or such similar facility in this state. A limited permit may be
14 renewed annually for the duration of such residency program or precep-
15 torship program. The fee for each limited permit and for each renewal
16 shall be one hundred five dollars.

17 6. A dentist that complies with the provisions of subdivision two or
18 two-a of this section for a duration of five years, upon satisfactory
19 completion of such five years of practice, may apply for licensure as a
20 dentist in this state.

21 § 2. Subdivisions 3 and 6 of section 6604 of the education law, subdi-
22 vision 3 as amended by chapter 613 of the laws of 2022 and subdivision 6
23 as amended by chapter 669 of the laws of 2022, are amended to read as
24 follows:

25 (3) Experience: have experience satisfactory to the board and in
26 accordance with the commissioner's regulations, provided that such expe-
27 rience shall consist of (i) satisfactory completion of a postdoctoral
28 general practice or specialty dental residency program, of at least one
29 year's duration, in a hospital or dental facility accredited for teach-
30 ing purposes by a national accrediting body approved by the department,
31 or (ii) satisfactory completion of at least five year's duration prac-
32 ticing as a dentist with a limited permit issued in accordance with
33 subdivision two or two-a of section sixty-six hundred five of this arti-
34 cle, provided, further that any such residency program, employment by a
35 registered school of dentistry or preceptorship program shall include a
36 formal outcome assessment evaluation of the resident's or dentist's
37 competence to practice dentistry acceptable to the department;

38 (6) Citizenship or immigration status: be a United States citizen or a
39 noncitizen lawfully admitted for permanent residence in the United
40 States; provided, however, that the board of regents may grant a three
41 year waiver for a noncitizen to practice in an area which has been
42 designated a federal dental health professions shortage area, except
43 that the board of regents may grant an additional extension not to
44 exceed six years to a noncitizen to enable ~~him or her~~ such noncitizen
45 to secure citizenship or permanent resident status, provided such status
46 is being actively pursued; and provided further that the board of
47 regents may grant an additional three-year waiver, and at its expira-
48 tion, an extension for a period not to exceed six additional years, for
49 the holder of an H-1b visa, an O-1 visa, or an equivalent or successor
50 visa thereto;

51 § 3. This act shall take effect on the ninetieth day after it shall
52 have become a law. Effective immediately, the addition, amendment and/or
53 repeal of any rule or regulation necessary for the implementation of
54 this act on its effective date are authorized to be made and completed
55 on or before such effective date.